Republic of the Philippines
PROVINCE OF BOHOL
Municipality of Ubay

Office of the Sangguniang Bayan

SESSION NO. 30 **MARCH 25, 2020**

EXCERPT FROM THE MINUTES OF THE REGULAR SESSION OF THE SANGGUNIANG BAYAN OF UBAY, BOHOL HELD ON MARCH 25, 2020 AT THE SB SESSION HALL.

Present:

Hon. Victor A. Bonghanoy	- Mun. Vice Mayor /Pres. Officer
Hon. Efren S. Tanjay	- SB Member
Hon. Joan Abad- Balduman	- SB Member
Hon. Maximo O. Boyles Jr.	- SB Member
Hon. Clarita V. Alesna	- SB Member
Hon. Constancio V. Atuel	- SB Member
Hon. Eustaquio R. Bacolod	- SB Member
Hon. Eutiquio B. Del Valle	- SB Member
Hon. Violeta D. Reyes	- SB Member
Hon. Nador A. Vallecera	- ABC President
Hon. Ron Adrian A. Boyonas	- SK Fed. President

Absent:

None

MUNICIPAL ORDINANCE NO. 09
Series 2020

AN ORDINANCE INSTITUTIONLIZING A DRUG – FREE WORKPLACE IN THE LOCAL GOVERNMENT OF UBAY, BOHOL AND APPROPRIATING FUNDS FOR THE IMPLEMENTATION THEREOF
(Sponsored by: Hon. Eutiquio B. Del Valle)

Whereas, Executive Order No. 66, Series of 2018, issued by President Rodrigo Roa Duterte, calls for the institutionalization of the Philippine Anti-~~il~~legal Drugs Strategy, which outlines the balanced efforts of the government to strengthen the campaign against illegal drugs contribute to international efforts to counter the worldwide illegal drug problem;

Whereas, Section 4 of the Executive Order provides that all local government units shall adopt their respective Drug – Free Workplace Programs and conduct authorized drug testing among their respective officials and personnel in accordance with the provisions of Republic Act No. 9165 or "The Comprehensive Dangerous Drug Act of 2002", as amended;

Whereas, Regulation No. 13, Series of 2018 issued by the Dangerous Drug Board mandates the creation of drug – free work place policies in all government offices, especially local government units, including the conduct of authorized drug testing, to ensure that all public officers remain drug free and that the general public be assured of effective and efficient service from the government.

Whereas, there is an imperative need to support the call of the President and the Dangerous Drugs Board and inspire active participation in the campaign against illegal trafficking and drug use in the government.

NOW THEREFORE, BE IT ORDAINED by the Sangguniang Bayan, in regular session assembled that;

Section 1. Short Title – This Ordinance shall be known as the "Drug – Free Workplace Policy in the Municipality of Ubay, Bohol."

Section 2. Objective – This ordinance aims to ensure that all public officers and personnel of the municipality / city / province, both elective and appointive, remain drug free in order to continuously provide effective and efficient service to the people.

Section 3. Scope – This Ordinance covers all elective and appointive public officers and personnel of the municipality/ city / province of Ubay, Bohol. Contract of Service and Job Order workers are also covered by the provisions of this Ordinance.

Section 4. Definition of Terms – The following terms are defined:

a. Authorized Drug testing – the testing done by any government forensic laboratory or a drug testing laboratory accredited by the Department of Health.
b. Challenge Test – a drug test conducted as a result of a challenge filed by a public officer who tested positive for drug use in a confirmatory test in an authorized drug testing activity
c. Confirmatory Test – an analytical test using a device, tool or equipment with a different chemical or physical principle that is more specific which will validate and confirm the result of screening test.
d. Dangerous Drugs – include those listed in the Schedules annexed to the 1961 Single Convention on Narcotic Drugs, as amended by the 1972 Protocol, and in the schedules annexed to the 1971 Single Convention on Psychotropic Substances as enumerated in the attached annex which is an integral part of Republic Act No. 9165 or the Comprehensive Dangerous Drugs Act of 2002, as amended (the "Act").
e. Drug Dependency Examination – refers to the examination conducted by a physician accredited by the DOH to evaluate the extent of drug use of a person and to determine whether he/she is a drug dependent or not, which includes history taking, intake interview, determination of criteria for drug dependency, mental and physical status, and detection of dangerous drugs in the body specimens through laboratory procedures.
f. Employee Assistance Program – a program that offers assistance to government officials or employees who have alcohol or drug—related issues and problems that may affect work performance. It shall be jointly implemented by the agency, the employees, and employees' union.
g. Mandatory Drug Testing – compulsory submission of a public officer or prospective employee to drug testing as mandated by this Ordinance.
h. Random Drug Testing – drug testing where selection process results in equal probability that any employee from a group of employees will be tested, and without any prior notice of the date and venue.
i. Screening Test – A rapid drug test performed to establish potential or presumptive positive result. It refers to the immunoassay test to eliminate a "negative" specimen, i.e one without the presence of dangerous drugs, from further consideration and to identify the presumptively positive specimen that requires confirmatory test.

Section 5. Establishment of the Drug – Free Workplace Committee – There shall be a Drug – Free Workplace Committee which shall ensure the proper implementation and dissemination of this Ordinance. The Committee shall be composed of the following:

a. Local Chief Executive or Representative;
b. Head of the Personnel Department or Representative;
c. Head of the Medical Department or Representative;
d. Head of the Employees Union or Representative; and
e. Action / Focal person, Provincial / City / Municipal Anti – Drug Abuse Council.

Section 6. Establishment of Assessment Team – There shall be an Assessment Team to be created by the Local Chief Executive which shall assist in the conduct of substance abuse awareness and prevention programs and implement the Employee Assistance Program for personnel who wish to undergo drug use intervention. It shall be composed of personnel with educational and training background on medicine, psychology, social work, and human resources administration

Section 7. Aspects of the Drug – Free Workplace Policy

a. Pre–employment Drug Testing – Mandatory drug testing shall remain an essential requirement for entry into government service. Any applicant found positive for drug use shall be denied entry to government service.
b. Substance Abuse Awareness and Prevention Programs – The Assessment Team shall initiate and implement these programs to ensure that personnel are properly informed on the evils of drug use, including its physical, mental, social, and legal implications.
c. Authorized Drug Testing – The Drug Free Workplace Committee and / or the Assessment Team shall implement a random selection procedure in order to determine personnel who shall undergo drug testing.
d. Employee Assistance Program – Any personnel, prior to the conduct of Authorized Drug Testing, may seek intervention through the Employee Assistance Program, which shall provide referrals and additional services to the personnel concerned. A Drug Dependency examination shall be conducted in order to determine the level of Substance Use Disorder and the applicable intervention. This program shall not apply to personnel who are found to be positive for drug use after the conduct of confirmatory drug test in an authorized drug testing facility.

Section 8. Guidelines in the Conduct of Authorized Drug Testing

a. The Local Chief Executive, in consultation with the Drug Free Workplace Committee, shall determine the frequency and dates for the conduct of an authorized drug testing activity. Information relating to frequency and dates relating to drug testing shall be treated with utmost confidentiality.
b. For cities and municipalities, indicate the manner of conduct of drug testing in the barangay level.
c. Personnel selected to undergo drug testing shall immediately report to the local Chief Executive, the Drug Free Workplace Committee, and / or the Assessment Team (to be determined by the LGU). Personnel who, without any justifiable reason, fail to report for drug testing shall be sanctioned.
d. Upon discovery that a urine sample tested positive for use of dangerous drugs after confirmatory testing, the result shall immediately be made known to the Local Chief Executive, who shall notify the public officer concerned. The public officer shall have fifteen (15) days from receipt of notice to challenge the result of the confirmatory test. Using the same specimen, a challenge test shall be conducted by a drug testing laboratory accredited by the DOH. All expenses incurred in the conduct of the challenge test shall be done by the concerned public officer.
e. A positive drug test result from the challenge test is deemed final and the public officer shall be subjected to administrative proceedings. Failure to file a challenge within the prescribed period shall make the positive drug test result from the confirmatory drug test final. The Agency shall then take the appropriate action.

Section 9. Sanctions

a. An appointive public officer who refuses, without any valid reason, to submit himself/herself to authorized drug testing, or is found positive for drug use after the conduct of confirmatory test in an authorized drug testing facility shall be charged with the administrative offense of Grave Misconduct.
b. Any elective public officer who refuses, without any valid reason, to submit himself/herself to authorized drug testing, or is found positive for drug use after the conduct of a confirmatory test in an authorized drug testing activity shall be subject to disciplinary action for misconduct

in office pursuant to section 60 of the Local Government Code and Article 124 (3) of the Implementing Rules and Regulations of the Local Government Code.

c. Any public officer found to have tampered the result of a drug test, interfered with the conduct of the drug test or in the release of drug test results, or violation of Section 32, Article II of the Act.
d. Any public officer who violated the provisions of the Article II of the Act shall be charged with the administrative offense of Grave Misconduct or face disciplinary sanction under Section 60 of the Local Government Code, as the case may be without prejudice to the filing of criminal charges under the Act and other relevant laws.

Section 10. Funding – The sum of _____) is appropriated for the implementation of this Ordinance, chargeable against (indicate fund resource). (Municipal and city Ordinances shall indicate whether barangays shall allocate their own funds for the implementation of the drug – free workplace policy of the municipality or city itself will shoulder the expenses)

Section 11. Reporting – The Local Chief Executive shall ensure that a copy of this Ordinance shall be communicated to the Dangerous Drug Board and the Department of the Interior and Local Government for information. Thereafter, the Local Chief Executive shall also report to said agencies the conduct of authorized drug testing and provide data as to the number of persons who were subjected to drug testing, the number of persons found positive for drug use, and the action undertaken by the Local Chief Executive on persons found positive for drug use.

Section 12. Separability Clause – If any part or provision of this Ordinance is held invalid or unconstitutional, other provisions not affected thereby shall remain in force and effect.

Section 13. Effectivity Clause – This ordinance shall take effect ten (10) days upon approval and posting in three conspicuous places within the Municipality.

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HON. VICTOR A. BONGHANOY
Vice Mayor
Presiding Officer
Sanggunian Bayan

ATTESTED:

ALPIOS B. DELIMA, M.A.
Secretary, Sangguniang Bayan

APPROVED:

HON. CONSTANTINO H. REYES
Municipal Mayor